

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

-----X Index No.:
ERICA FERMIN and MARCELO BRAVO-LOPEZ,

Plaintiffs,

SUMMONS

- against -

Plaintiffs designates New York
County as the place of trial.

THE CITY OF NEW YORK, POLICE OFFICER JESSICA
TORRES, of the 9th Precinct, and SERGEANT O'CONNOR
of the 9th Precinct, Individually and in their official capacity,

Defendants.

-----X

To the above named Defendants:

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorney(s) within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated:

New York, NY
November 25, 2015

Yours etc.

_____/s/_____
Christopher H. Fitzgerald
Attorneys for Plaintiffs
ERICA FERMIN and
MARCELO BRAVO-LOPEZ
233 Broadway, Suite 2348
New York, NY 10279
212-226-2275

TO:

THE CITY OF NEW YORK
Division of Law, Rm 1225 South
1 Centre Street
New York, NY 10007

THE NEW YORK CITY LAW DEPARTMENT
100 Church Street
New York, NY 10007

POLICE OFFICER JESSICA TORRES
9th Precinct, New York City Police Department
321 East 5th Street
New York, NY 10003

SERGEANT O'CONNOR
9th Precinct, New York City Police Department
321 East 5th Street
New York, NY 10003

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

Index No.:

-----X
ERICA FERMIN and MARCELO BRAVO-LOPEZ,

Plaintiffs,

VERIFIED COMPLAINT

- against -

THE CITY OF NEW YORK, POLICE OFFICER JESSICA
TORRES, of the 9th Precinct, and SERGEANT O'CONNOR of
the 9th Precinct, Individually and in their official capacity,

Defendants.

-----X

Plaintiffs, by their attorneys, THE LAW OFFICE OF CHRISTOPHER H.
FITZGERALD, complaining of the Defendants, respectfully alleges, upon information and
belief:

1. That on August 26, 2014, and at all times herein mentioned, Defendant the **CITY OF NEW YORK** was, and still is, a municipal corporation.
2. That within the time prescribed by law, a sworn Notice of Claim stating, among other things, the time when and place where the injuries and damages were sustained, together with Plaintiff's demands for adjustment thereof, was duly served on the Plaintiff's behalf on **THE CITY OF NEW YORK**, and that, thereafter, said Defendants refused or neglected for more than thirty (30) days, and up to the commencement of this action, to make any adjustment or payment thereof, and that thereafter, and within the time provided by law, this action was commenced.
3. That this action is commenced within a year and 90 days from this incident.

4. At all times herein mentioned, Defendant **THE CITY OF NEW YORK** was the employer of all individually named defendants, including PO Torres and Sgt. O'Connor.
5. That on August 26, 2014, there existed no probable cause to arrest Plaintiffs ERICA FERMIN and MARCELO BRAVO-LOPEZ.
6. That on August 26, 2014 Plaintiffs ERICA FERMIN and MARCELO BRAVO-LOPEZ were arrested and placed in handcuffs inside the New York City park located across from 410 East 11th Street in the County, City and State of New York, by Officers Jessica Torres and Sergeant O'Connor of the 9th Precinct of the New York City Police Department.
7. That plaintiffs were then taken to the 9th Precinct and detained.
8. Plaintiffs Marcelo Bravo Lopez was issued a Desk Appearance Ticket and released at approximately 12:45 am on August 27, 2014.
9. Plaintiffs ERICA FERMIN was then was taken to New York County Central Booking, finger printed, photographed, and charged with Criminal Trespass. Her total time of incarceration was approximately 24 hours. Claimant accepted an Adjournment in Contemplation of Dismissal at arraignment.
10. That plaintiffs were maliciously prosecuted by and at the direction of Officer Jessica Torres and Sergeant O'Connor as well as other agents, servants and/or employees of the City of New York.
11. That none of the aforementioned acts are or were protected by legal privilege, nor were such acts legally justified. Said occurrence and the injuries and damages sustained by claimants were due solely to the negligence, carelessness, recklessness and willful misconduct of the CITY OF NEW YORK, its agents, servants and/or employees.

12. That no acts on the part of the Plaintiffs ERICA FERMIN and MARCELO BRAVO-LOPEZ, contributed to the occurrence alleged herein in any manner whatsoever.
13. That as a result of the intentional, reckless and negligent acts of the defendants, plaintiffs ERICA FERMIN suffered loss of liberty of approximately 24 hours; severe anxiety, humiliation, and embarrassment; damage to personal reputation; apprehension, fear and distrust of the police; emotional and psychological trauma; and violations of rights under the U.S. and New York Constitutions, and applicable statutory and case law.
14. That by reason of the foregoing, Plaintiffs ERICA FERMIN and MARCELO BRAVO-LOPEZ have been damaged in a sum which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

FIRST CLAIM FOR RELIEF:
FALSE ARREST UNDER 42 U.S.C. §1983

1. Plaintiffs repeats, reiterates, and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.
2. Plaintiffs were arrested in the absence of probable cause, at the direction of, or under practices, policies or customs promulgated by the NEW YORK CITY POLICE DEPARTMENT and CITY OF NEW YORK.
3. As a result of the aforesaid conduct by defendant TORRES and O'CONNOR, plaintiffs were subjected to illegal, improper and false arrest by the defendants and taken into custody and caused to be falsely imprisoned, detained and confined without any probable cause, privilege or consent.

4. As a result of the above constitutionally impermissible conduct, plaintiffs were caused to suffer physical, psychological and emotional injuries, violation of his civil rights, emotional distress, anguish, anxiety, fear, humiliation, loss of freedom, and damage to his reputation and his standing within his community.
5. As a result of defendants' impermissible conduct, plaintiffs demands judgment against defendants in a sum of money to be determined at trial.

SECOND CLAIM FOR RELIEF:

FALSE ARREST AND FALSE IMPRISONMENT UNDER STATE LAW

6. Plaintiffs repeats, reiterates, and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.
7. That at all times hereinafter mentioned, defendant THE CITY OF NEW YORK assumed responsibility, supervision, and authority of the NEW YORK CITY POLICE DEPARTMENT and its agents, servants and employees, and is liable to plaintiffs for the acts complained of herein under the theories of vicarious liability and *respondeat superior*.
8. At the aforementioned times and locations, plaintiffs were detained and held under the imprisonment and control of the defendants TORRES and O'CONNOR under false pretenses.
9. At the aforementioned times and locations, due to the negligence of the defendants, their servants, agents, employees, licensees, independent contractors and/or police officers while in the course and scope of their employment with THE CITY OF NEW YORK, and acting under authority of the NEW YORK CITY POLICE DEPARTMENT, falsely arrested and imprisoned the plaintiffs without warrant, authority of law or probable cause therefore.

10. That the acts and conduct on the part of the individual defendants constituting the false arrest and false imprisonment consisted in part of the following: unlawfully and intentionally detaining and confining plaintiffs against their will and without their consent; unlawfully and intentionally detaining and confining plaintiffs without privilege, probable cause or valid legal process; unlawfully detaining and confining plaintiffs through the unlawful arrest of plaintiff; unlawfully detaining and confining plaintiffs; unlawfully arresting plaintiffs and placing them in handcuffs without reasonable cause therefore, and committing such other acts resulting in the unlawful arrest and imprisonment of plaintiff.
11. That at all times hereinafter mentioned, said arrest, confinement and restraint of liberty was not otherwise privileged.
12. That plaintiffs were conscious of the confinement.
13. That as a direct, sole and proximate result of the false arrest, imprisonment, and excessive force, plaintiffs were caused to and did sustain humiliation and embarrassment, emotional and mental distress, moral and mental degradation, indignity and disgrace, injury to personal reputation, inconvenience, disturbance and disruption of life, legal expenses, and loss of personal income.
14. By the actions described above, the individual and municipal defendants caused plaintiffs to be falsely arrested and/or falsely imprisoned plaintiffs without probable cause, without reasonable suspicion, illegally, without any proper claims, and without any right or authority to do so. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to the plaintiffs and violated his statutory and

common law rights as guaranteed by the law of the Constitution of the State of New York.

15. As a result of the above constitutionally impermissible conduct, plaintiffs were caused to suffer physical, psychological and emotional injuries, violation of his civil rights, emotional distress, anguish, anxiety, fear, humiliation, loss of freedom, and damage to his reputation and his standing within his community.

THIRD CLAIM FOR RELIEF:
NEGLIGENCE

16. Plaintiffs repeats, reiterates, and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.
17. Defendants negligently caused emotional distress, psychological harm, physical injuries, and damage to plaintiff. The acts and conduct of the defendants were the direct and proximate cause of injury to the plaintiffs and violated his statutory and common law rights as guaranteed by the laws and Constitution of the state of New York.
18. As a result of the foregoing, plaintiffs were caused to suffer physical, psychological and emotional injuries, violation of his civil rights, emotional distress, anguish, anxiety, fear, humiliation, loss of freedom, and damage to his reputation and his standing within his community.

FOURTH CLAIM FOR RELIEF:
NEGLIGENT HIRING, SCREENING, RETENTION,

SUPERVISION and TRAINING of TORRES and O'CONNOR

19. Plaintiffs repeats, reiterates, and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.
20. Defendant CITY OF NEW YORK negligently hired, screened, retained, supervised, and trained the individual defendants. The acts and conduct of the defendants

were the direct and proximate cause of injury to the plaintiffs and violated his statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.

21. As a result of the foregoing, plaintiffs were caused to suffer physical, psychological and emotional injuries, violation of his civil rights, emotional distress, anguish, anxiety, fear, humiliation, loss of freedom, and damage to his reputation and his standing within his community.

FIFTH CLAIM FOR RELIEF:

**MUNICIPAL LIABILITY UNDER MONELL ARISING FROM UNCONSTITUTIONAL
POLICIES AND CUSTOMS UNDER 42 U.S.C. §1983**

22. Plaintiffs repeats, reiterates, and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.
23. Defendants TORRES and O'CONNOR arrested and detained plaintiffs in the absence of any evidence of criminal wrongdoing, notwithstanding their knowledge that said arrest and incarceration would jeopardize the plaintiff's liberty, well-being, safety and constitutional rights.
24. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers and officials, with all the actual and/or apparent authority attendant thereto.
25. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers and officials pursuant to the customs, policies, usages, practices, procedures, and rules of the CITY OF NEW YORK and the NEW YORK POLICE DEPARTMENT, all under the supervision of officers of said department.

26. As a result of the aforementioned conduct of the defendant CITY OF NEW YORK, and the individual defendants, plaintiff's constitutional rights were violated.

27. As a result of the above constitutionally impermissible conduct, plaintiffs were caused to suffer psychological and emotional injuries, violation of his civil rights, emotional distress, anguish, anxiety, fear, humiliation, loss of freedom, and damage to his reputation and his standing within his community.

28. As a result of the defendants' impermissible conduct, plaintiffs demands judgment against defendants in a sum of money to be determined at trial.

WHEREFORE, plaintiffs demands the following relief jointly and severally against all of the defendants:

- a. Compensatory damages;
- b. Punitive damages;
- c. The convening and empaneling of a jury to consider the merits of the claims herein;
- d. Costs and interest and attorney's fees;
- e. Such other and further relief as this court may deem appropriate and equitable.

Dated:

New York, NY
November 25, 2015

Yours, etc.

The Law Office of Christopher H. Fitzgerald

/s/

Christopher H. Fitzgerald
Attorneys for Plaintiff(s)
ERICA FERMIN and
MARCELO BRAVO-LOPEZ
233 Broadway, Suite 2348
New York, NY 10013
212-226-2275

ATTORNEY'S VERIFICATION

CHRISTOPHER H. FITZGERALD, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am an attorney at THE LAW OFFICE OF CHRISTOPHER H. FITZGERALD, attorneys of record for Plaintiffs ERICA FERMIN and MARCELO BRAVO LOPEZ. I have read the annexed **COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files.

This verification is made by me because Plaintiffs do not reside in the county wherein I maintain my offices.

DATED: New York, NY
 November 25, 2015

_ /s/ _____
CHRISTOPHER H. FITZGERALD
Counsel for Plaintiffs